

Sudama Prasad Patairiya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 March 2019 · Writ-C No. 7892 of 2019 · **Writ dismissed; new-connection dispute relegated to CGRF then Ombudsman.**

HEADNOTE

A writ complaining of non-grant of a new electricity connection was dismissed on alternative remedy. The Division Bench held that a dispute as to grant of connection is to be taken first to the Consumer Grievance Redressal Forum under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, and thereafter to the Ombudsman under para 7.10(iv). Counsel could not show why that statutory route should not be availed.

FACTUAL SUMMARY

Sudama Prasad Patairiya applied on 28 January 2019 for a new electricity connection. The connection was not granted. He invoked the writ jurisdiction of the Allahabad High Court in Writ-C No. 7892 of 2019 against the State of Uttar Pradesh and another, complaining of the non-grant of that connection. The petition was heard by a Division Bench comprising Sudhir Agarwal and Rajendra Kumar-IV JJ. Counsel for the petitioner and the Standing Counsel for the State appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

new connection — CGRF and Ombudsman as alternative remedy

HOLDING

A dispute regarding grant of a new electricity connection is to be taken to the Consumer Grievance Redressal Forum under para 7.10(i) of the Electricity Supply Code, 2005 read with the UPERC (Consumer Grievance Redressal Forum and Ombudsman) Regulations, 2003, and thereafter to the Ombudsman under para 7.10(iv). The writ was dismissed on that alternative remedy, counsel having failed to show why the petitioner should not be relegated to that route. ¶ 3-4

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10

Non-grant of a new electricity connection is a dispute for the Consumer Grievance Redressal Forum under clause 7.10(i) and thereafter the Ombudsman under clause 7.10(iv); the writ was dismissed on that alternative remedy. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A NEW ELECTRICITY CONNECTION ON THE 28 JANUARY 2019 APPLICATION

The Court did not examine the merits of the connection claim, dismissing the writ solely on alternative remedy. ¶ 3-4